

03 — The highest-status opened instruments are administrative determinations, not criminal findings

AI evidence synthesis · 26 September 2026 · Finding aid, not a court.

03 — The highest-status opened instruments are administrative determinations, not criminal findings

Executive proposition

Inside the opened corpus, the documents with the highest formal status are administrative determinations about a workers' compensation claim. On 26 May 2021 Comcare declined claim 1326583/1 under section 14 of the Safety, Rehabilitation and Compensation Act 1988. On 12 July 2023 the Administrative Appeals Tribunal sent a covering letter stating that it had affirmed the decision under review. Those instruments are official records. They are not findings that a crime occurred.

Scope

Opened: McLean-determination-Comcare-rejection-26May2021.pdf ([https:// wezzo72.github.io/ Barrandodger/ docs/ official-drive/ McLean-determination-Comcare-rejection-26May2021.pdf](https://wezzo72.github.io/Barrandodger/docs/official-drive/McLean-determination-Comcare-rejection-26May2021.pdf)) (3 pages, extractable text) and ART-2021-7478-McLean-and-Comcare-Decision-12-July-2023.pdf ([https:// wezzo72.github.io/ Barrandodger/ docs/ official-drive/ ART-2021-7478-McLean-and-Comcare-Decision-12-July-2023.pdf](https://wezzo72.github.io/Barrandodger/docs/official-drive/ART-2021-7478-McLean-and-Comcare-Decision-12-July-2023.pdf)) (2 pages, AAT covering letter). A longer file named McLean-and-Comcare-FINAL-Decision.pdf exists in the same folder; this essay does not treat the covering letter as the full reasons.

Documentary findings

The Comcare letter is dated 26 May 2021, addressed to Dr Richard William McLean at 2 McCubbin Street, Footscray 3011. Claim number 1326583/1. Claimed condition: anxiety and depression. Date of injury: 22 January 2021. The determination states the claim "has been declined under section 14 of the Safety, Rehabilitation and Compensation Act 1988 (SRC Act) for anxiety state and depressive disorder."

The stated first criterion is whether the person is an "employee" under section 5 of the SRC Act. The letter records that the claim form dated 26 April 2021 stated the usual occupation as "artist-life coach- therapeutic supplier" and "sole trader"; that an email of 13 May 2021 said the person was a registered NDIA provider; that NDIA, in a statement dated 10 May 2021, advised the person is not an employee of NDIA, is not paid wages with tax and superannuation deducted, and is not subject to the APS Code of Conduct. Comcare concludes it is "not satisfied you are an 'employee' in accordance with the SRC Act and as such are precluded from claiming compensation through Comcare." The letter is signed Amy Delzoppo, Comcare delegate.

The AAT covering letter is on Administrative Appeals Tribunal letterhead, General Division, Our Ref: 2021/7478, dated 12 July 2023, signed "Eliza W For the Registrar." Applicant: Richard William McLean. Respondent: Comcare. It states a decision has been made under section 43 of the Administrative Appeals Tribunal Act 1975, that a copy of the decision is sent with the letter, and: "We have affirmed the decision we were asked to review, which means that it has not been changed." It advises of a possible appeal to the Federal Court of Australia.

PDF metadata on the AAT covering letter shows CreationDate 5 March 2026 and Producer "SBC IT Pty Ltd via ABCpdf." That is a later processing stamp on the file as stored. It is not, without more, a reason to discard the letterhead text. It is a provenance fact about the stored copy.

Primary evidence

- Comcare determination, 26 May 2021 ([https:// wezzo72.github.io/ Barrandodger/ docs/ official-drive/ McLean-determination-Comcare-rejection-26May2021.pdf](https://wezzo72.github.io/Barrandodger/docs/official-drive/McLean-determination-Comcare-rejection-26May2021.pdf))
- AAT covering letter, 12 July 2023, file 2021/7478 ([https:// wezzo72.github.io/ Barrandodger/ docs/ official-drive/ ART-2021-7478-McLean-and-Comcare-Decision-12-July-2023.pdf](https://wezzo72.github.io/Barrandodger/docs/official-drive/ART-2021-7478-McLean-and-Comcare-Decision-12-July-2023.pdf))
- McLean-and-Comcare-FINAL-Decision.pdf (reasons file, not fully quoted here) ([https:// wezzo72.github.io/ Barrandodger/ docs/ official-drive/ McLean-and-Comcare-FINAL-Decision.pdf](https://wezzo72.github.io/Barrandodger/docs/official-drive/McLean-and-Comcare-FINAL-Decision.pdf))

Corroboration

The two letters are consistent with each other on outcome: a declined claim, later affirmed. They are also consistent with the archive's own later analytical pages that discuss the Comcare path. Consistency of outcome across a determination and a tribunal covering letter is corroboration of the administrative result. It is not corroboration of the author's allegations about other agencies.

Contrary evidence

The covering letter is two pages and is not the reasons for decision. Treating "affirmed" as a full account of the Tribunal's findings on every issue would over-read this file. The longer reasons PDF exists and should be opened by any reader who needs the Tribunal's findings of fact.

Comcare's employee analysis is an administrative conclusion on the evidence then before the delegate. It is not a criminal finding, and it is not a finding about NDIS quality-and-safeguards issues except insofar as they were used as indicators of contractor status.

What the record establishes

- A — Comcare issued a written decline of claim 1326583/1 on 26 May 2021 under SRC Act s 14, on the ground that it was not satisfied the claimant was an employee under s 5.
- A — An AAT covering letter dated 12 July 2023, file 2021/7478, states that the decision under review was affirmed.
- A — These are official determinations / tribunal communications, Level 1-2 in the archive's own source hierarchy, about compensation status.
- C — Underlying allegations of persecution, framing, or conspiracy named in other files are not decided by these two letters.

What the record does not establish

It does not establish that the author was or was not, as a matter of all-purpose law, a public official for PID Act purposes (see essay 05). It does not establish Rome Statute conduct, assassination, or "genocide by attrition." It does not establish the dollar figures published on barrandodger.com.

Unresolved questions

What the full AAT reasons decide beyond the covering letter's "affirmed" sentence is not restated in this essay. Whether any later court set aside the AAT decision was not located in the files opened for this scan.

Evidence classification

Comcare decline: A, official determination. AAT affirmation, as stated in the covering letter: A, official tribunal communication. Broader allegations: not established by these instruments.

Provenance

PDFs downloaded from wezzo72.github.io/Barrandodger/docs/official-drive/ on 26 September 2026. Text extracted with pypdf.

Verification links

- Comcare PDF (<https://wezzo72.github.io/Barrandodger/docs/official-drive/McLean-determination-Comcare-rejection-26May2021.pdf>)
- AAT covering letter PDF (<https://wezzo72.github.io/Barrandodger/docs/official-drive/ART-2021-7478-McLean-and-Comcare-Decision-12-July-2023.pdf>)
- SRC Act (legislation.gov.au) (<https://www.legislation.gov.au/C2004A03629/latest/text>)

Conclusion

A third party can conclude that a Commonwealth compensation claim was declined in writing and that the AAT stated it had affirmed the decision under review. That is among the strongest official paper in the opened corpus. A third party cannot conclude from these two letters that the archive's criminal or international-criminal characterisations are established.

Machine provenance

AI EVIDENCE SYNTHESIS — MANDATE SCAN

Corpus opened: <https://wezzo72.github.io/Barrandodger/index.html> ; <https://barrandodger.com> ; GitHub accounts <https://github.com/wezzo72> and <https://github.com/drbarandodger> and their public repositories; GitHub issue <https://github.com/drbarandodger/barran-dodger-archive/issues/2> ; verification portal; official-drive catalogue; named agency PDFs listed in each essay.

Analysis date: 26 September 2026.

Selection method: after scanning the named hosts, rank the ten statements the evidence can actually answer in support of the archive's published mandate (preserve the record; make examination possible; distinguish document, testimony, allegation and finding). Order is significance to that mandate, not rhetorical force.

Author selection involvement: REMOVED. The protagonist did not choose the subjects, assign their order, or draft the conclusions.

Human verification: not separately repeated by a second person in this execution.

AI limitations: image-only PDF pages yield no text (the 8 August 2025 Ombudsman service-restriction PDF is one such file); this pass did not recursively read every blob in the multi-hundred-megabyte Backup and pdf-archive repositories; absence of a personal stake is not infallibility.

Genesis command: `python3 scripts/generate_ai_mandate_essays.py`

Parent command: <https://github.com/drbarandodger/barran-dodger-archive/issues/2>

Protagonist and the selection mechanism

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